

Professional Mediations LLC
From Conflict to Common Ground

AGREEMENT TO MEDIATE & FEE AGREEMENT

This Agreement to Mediate (“Agreement”) is entered into by the undersigned participants (“the Parties”) and **Christian Piatt, Esq., Mediator**, of **Professional Mediations LLC** (“the Mediator”).

1. Purpose of Mediation

The Parties agree to participate in mediation for the purpose of resolving the issues in dispute. Mediation is a voluntary, confidential, and self-determined process in which the Mediator facilitates communication and negotiation but does not impose a decision.

2. Role of the Mediator

- The Mediator is a **neutral facilitator** who assists the Parties in identifying issues, exploring options, and working toward a mutually acceptable resolution.
- The Mediator **does not provide legal advice**, represent either Party, or make decisions for the Parties.
- The Mediator may meet with the Parties jointly or separately (caucus) as needed.

3. Voluntary Participation

- Mediation is voluntary. Either Party or the Mediator may suspend or terminate the mediation at any time.
- Any Party may withdraw from mediation for any reason.

4. Self-Determination

Consistent with NACM principles, the Parties retain full control over the outcome. No Party is required to agree to any proposal, and no settlement is binding unless reduced to writing and signed by all Parties.

5. Confidentiality

To promote candid discussion:

- Mediation communications are confidential to the fullest extent permitted by Maryland law.
- The Mediator will not disclose information shared during mediation except as required by law (e.g., threats of harm, abuse, or court-ordered disclosures).
- The Parties agree not to subpoena the Mediator or mediation records.

- The Mediator may destroy notes taken during the process.

6. Good-Faith Participation

The Parties agree to participate respectfully, share relevant information as needed, and make sincere efforts to explore resolution.

7. Fees and Payment Responsibilities

The Mediator's fee is **\$350 per hour**, billed in 0.5-hour increments after the free initial consultation, for:

- Mediation sessions
- Preparation and review of documents
- Communications with the Parties
- Drafting of memoranda or agreements
- Administrative time related to the case

Billing will be done in 0.25-hour increments after the free initial consultation, ensuring precise and fair billing for all services provided.

7.1 Fee Allocation

The Parties agree to divide the Mediator's fees as follows (must total 100%):

Party	Percentage of Fees
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Party A: _____ %

Party B: _____ %

If additional Parties are involved, an addendum may be attached.

7.2 Payment Terms

- Each Party is responsible for paying their agreed-upon percentage of all mediation fees.
- Invoices will be issued to each Party separately unless otherwise agreed.
- Payment is due upon receipt unless alternative arrangements are approved in writing.
- Failure to pay may result in suspension or termination of mediation.

7.3 Cancellation Policy

Sessions canceled with less than **24 hours' notice** may be billed at one hour of the Mediator's hourly rate, divided according to the Parties' agreed percentages.

8. Attorneys and Advisors

The Parties may consult with attorneys or other advisors at any time. The Mediator encourages each Party to seek independent legal advice before signing any final agreement.

9. No Guarantees

The Mediator makes no guarantee that mediation will resolve the dispute.

10. Acknowledgment

By signing below, the Parties acknowledge that they:

- Have read and understand this Agreement
- Enter mediation voluntarily
- Agree to the terms set forth above

Signatures

Party A:

Name:

Signature:

Date:

Party B:

Name: __

Signature:

Date:

Mediator:

Christian Piatt, Esq.

Professional Mediations LLC

Signature:

Date: